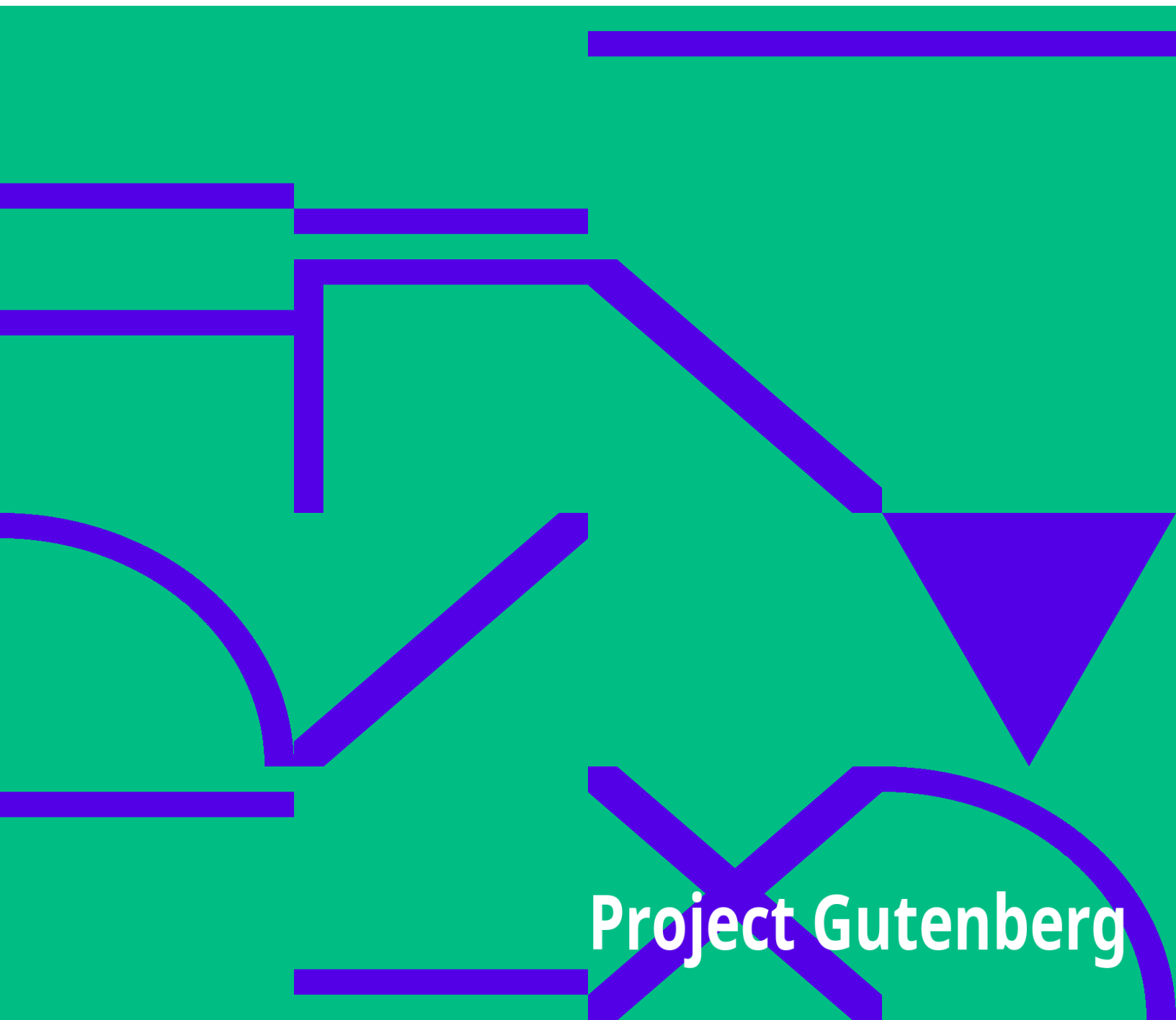


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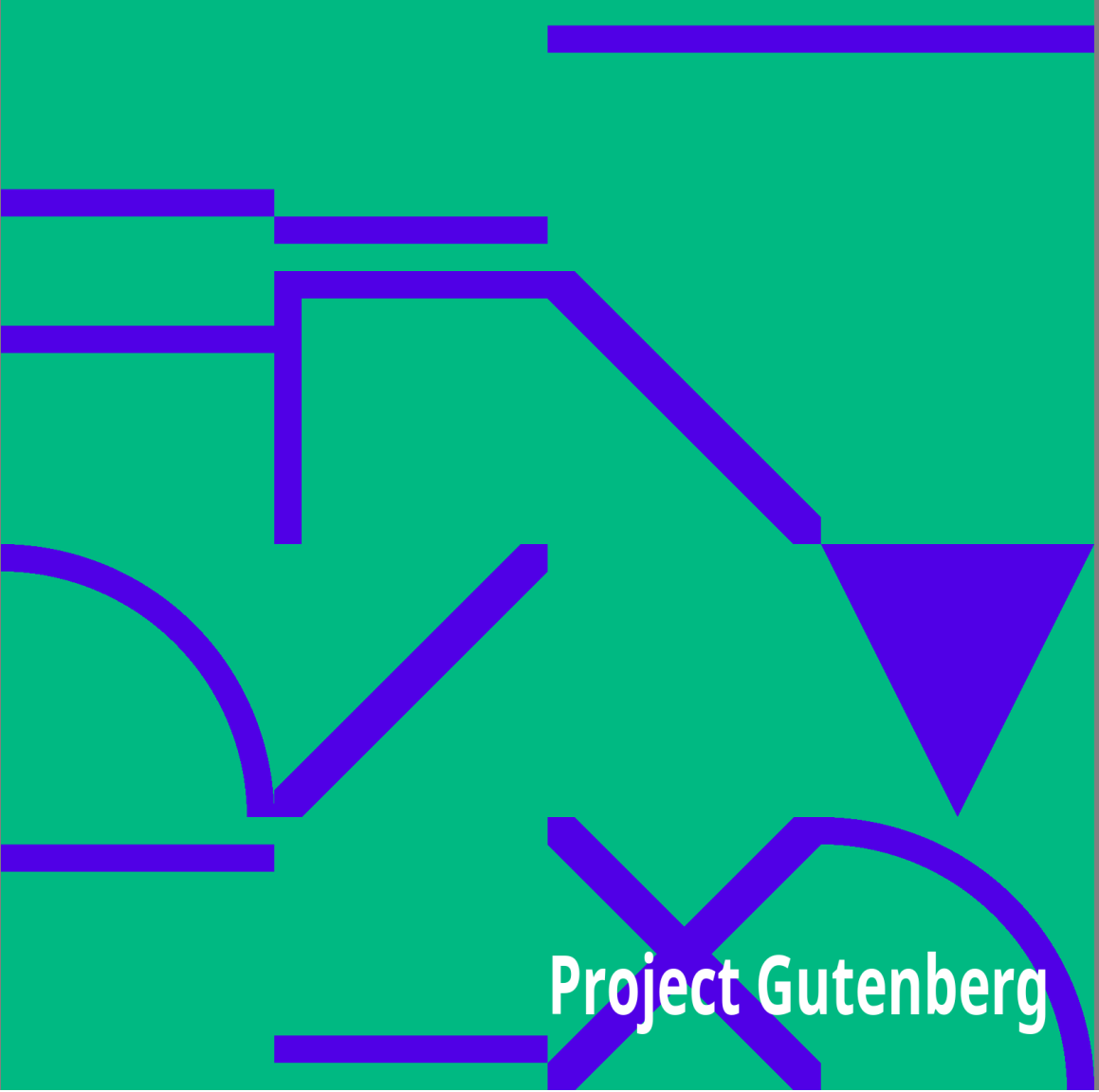
F. J. C. Hearnshaw



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Freedom In Service

F. J. C. Hearnshaw



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SERVICE ***

FREEDOM IN SERVICE

**SIX ESSAYS ON MATTERS CONCERNING
BRITAIN'S SAFETY AND GOOD
GOVERNMENT**

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**LONDON:
JOHN MURRAY, ALBEMARLE STREET, W.
1916**

**TO THE GLORIOUS AND
IMMORTAL MEMORY
OF
LORD ROBERTS**

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PREFACE

The first three essays in this little book appeared originally as special articles in the *Morning Post*. I am greatly indebted to the Editor of that paper for his courteous and ready permission to reprint them. The "Freedom" dealt with in these essays is political freedom, and the "Service" advocated is universal military service. These limitations are due to the fact that the original newspaper articles were contributions to the controversy respecting methods of enlistment which took place during the autumn of 1915.

The remaining three essays appear now for the first time. They have a more general scope, although they are vitally connected with the theme of their predecessors. The essay on Passive Resistance has special reference to the opposition offered by the No-Conscription Fellowship to the principle of compulsory military service; but its argument applies equally well to the older antagonists of the authority of the State. The essay on Christianity and War tries to meet those conscientious objections to military service which form the basis of the propaganda of the Fellowship of Reconciliation; but it deals with the problem in the broadest manner possible within the limits of its space. The concluding essay, on the State and its Rivals, emphasizes the imperative need that the authority of the Democratic National State should be recognized and accepted if internal anarchy is to be avoided, and if the peace and well-being of the World are to be secured.

F. J. C. HEARNshaw.

King's College, Strand, W.C.
January 12th, 1916.

FREEDOM IN SERVICE

I

THE ANCIENT DEFENCE OF ENGLAND^[1]

[Reprinted, with the addition of References, from the *Morning Post* of August 20th, 1915.]

I. UNIVERSAL OBLIGATION TO SERVE

"The military system of the Anglo-Saxons is based upon universal service, under which is to be understood the duty of every freeman to respond in person to the summons to arms, to equip himself at his own expense, and to support himself at his own charge during the campaign."^[2]

With these words Gneist, the German historian of the English Constitution, begins his account of the early military system of our ancestors. He is, of course, merely stating a matter of common knowledge to all students of Teutonic institutions. What he says of the Anglo-Saxon is equally true of the Franks, the Lombards, the Visigoths, and other kindred peoples.^[3] But it is a matter of such fundamental importance that I will venture, even at the risk of tedious repetition, to give three parallel quotations from English authorities. Grose, in his *Military Antiquities*, says: "By the Saxon laws every freeman of an age capable of bearing arms, and not incapacitated by any bodily infirmity, was in case of a foreign invasion, internal insurrection, or other emergency obliged to join the army."^[4] Freeman, in his *Norman Conquest*, speaks of "the right and duty of every free Englishman to be ready for the defence of the Commonwealth with arms befitting his own degree in the Commonwealth."^[5] Finally, Stubbs, in his *Constitutional History*, clearly states the case in the words: "The host was originally the people in arms, the whole free population, whether landowners or dependents, their sons, servants, and tenants. Military service was a personal obligation ... the obligation of freedom"; and again: "Every man who was in the King's peace was liable to be summoned to the host at the King's call."^[6]

There is no ambiguity or uncertainty about these pronouncements. The Old English "fyrd," or militia, was the nation in arms. The obligation to serve was a personal one. It had no relation to the possession of land; in fact it dated back to an age in which the folk was still migratory and without a fixed territory at all. It was incumbent upon all able-bodied males between the ages of sixteen and sixty. Failure to obey the summons was punished by a heavy fine known as "fyrdwite."^[7]

There is another point of prime significance. Universal service was, it is true, an obligation. But it was more: it was the *mark of freedom*. Not to be summoned stamped a man as a slave, a serf, or an alien. The famous "Assize of Arms" ends with the words: "*Et praecepit rex quod nullus reciperetur ad sacramentum armorum nisi liber homo.*"^[8] A summons was a right quite as much as a duty. The English were a brave and martial race, proud of their ancestral liberty. Not to be called to defend it when it was endangered, not to be allowed to carry arms to maintain the integrity of the fatherland, was a degradation which branded a man as unfree.

FOOTNOTES:

[1] This chapter has been issued as a pamphlet by the National Service League, 72, Victoria Street, S.W.

[2] Gneist, R. *Englische Verfassungsgeschichte*, p. 4.

[3] Cf. the Frankish Edict of A.D. 864: "Ad defensionem patriæ omnes sine ulla excusatione veniant." (Let all without any excuse come for the defence of the fatherland.)

[4] Grose, F. *Military Antiquities*, vol. i, p. 1.

[5] Freeman, E. *Norman Conquest*, vol. iv, p. 681.

[6] Stubbs, W. *Const. Hist.*, vol. i, pp. 208, 212.

[7] Oman, C. W. C. *Art of War in the Middle Ages*, p. 67.

[8] Stubbs, W. *Select Charters*, p. 156. (The King orders that no one except a freeman shall be admitted to the oath of arms.)

II. THE OLD ENGLISH MILITIA

This primitive national militia was not, it must be admitted, a very efficient force. It lacked coherence and training; it was deficient both in arms and in discipline; it could not be kept together for long campaigns. The Kings, therefore, from the first supplemented it by means of a band of personal followers, a bodyguard of professional warriors, well and uniformly armed, and practised in the art of war. Nevertheless, the main defence of the country rested with the "fyrd." The Danish invasions put it to the severest test and revealed its military defects. It was one of the most notable achievements of Alfred to reorganize and reconstitute it. Thus reformed, with the support of an ever-growing body of King's thegns, it wrought great deeds in the days of Alfred, Edward and Athelstan, and recovered for England security and peace. In the days of their weaker successors, however, all the forces that England could muster failed to keep out Sweyn and Canute, and, above all, failed to hold the field at Hastings.

The Norman Conquest might have been expected to involve the extinction of the English militia. For feudalism as developed by William I was strongest on its military side, and William's main force was the levy of his feudal tenants. But quite the contrary happened. The Norman monarchs and their Angevin successors were, as a matter of fact, mortally afraid of their great feudal tenants, the barons and knights through whom the Conquest had been effected. Hence, as English kings, they assiduously maintained and fostered Anglo-Saxon institutions, and particularly the "fyrd," which they used as a counterpoise to the feudal levy. They even called upon it for Continental service and took it across the Channel to defend their French provinces.^[9] Thus in 1073 it fought for William I in Maine; in 1094 William II summoned it to Hastings for an expedition into Normandy; in 1102 it aided Henry I to suppress the formidable revolt of Robert of Belesme, Earl of Shrewsbury; in 1138 it drove back the Scots at the Battle of the Standard; and in 1174 it defeated and captured William the Lion at Alnwick. So valuable, indeed, did it prove to be that Henry II resolved to place it upon a permanent footing and clearly to define its position. With that view he issued in 1181 his "Assize of Arms."

FOOTNOTE:

[9] Stubbs, W. *Select Charters*, p. 83; and *Const. Hist.*, vol. i, p. 469.

III. MEDIAEVAL REGULATIONS

Into the details of the "Assize of Arms" it is unnecessary here to enter. Are they not written in every advanced text-book of English history? Three things, however, are to be noted. First, that the duty and privilege of military service are still bound up with freedom; no unfree man is to be admitted to the oath of arms. Secondly, that upon freemen the obligation is still universal: "all burgesses and the whole community of freemen (*tota communa liberorum hominum*) are to provide themselves with doublets, iron skullcaps, and lances." Thirdly, that, closely as freedom had during the centuries of feudalism become associated with tenancy of land, the national militia had not been involved in feudal meshes: the obligation of service remained still personal, not territorial.

In 1205 John, fearing an invasion of the Kingdom, called to arms all the militia sworn and equipped under the Assize, *i.e.*, all the freemen of the realm. Short-shrift was to be given to any who disobeyed the summons: "*Qui vero ad summonitionem non venerit habeatur pro capitali inimico domini regis et regni*" (He who does not come in response to the summons shall be regarded as a capital enemy of the king and kingdom.) The penalty was to be the peculiarly appropriate one of reduction to perpetual servitude. The disobedient and disloyal subject who made the great refusal would *ipso facto* divest himself of the distinguishing mark of his freedom.^[10]

Henry III in 1223 and 1231 made similar levies. In 1252, in a notable writ for enforcing Watch and Ward and the Assize of Arms, he extended the obligation of service to villans and lowered the age limit to fifteen. Edward I reaffirmed these new departures in his well-known Statute of Winchester (1285), in which it is enacted that "every man have in his house harness for to keep the peace after the ancient assize, that is to say, every man between

fifteen years of age and sixty years." Further, he enlarged the armoury of the militiaman by including among his weapons the axe and the bow.^[11]

The long, aggressive wars of Edward I in Wales and Scotland, and the still longer struggles of the fourteenth century in France, could not, of course, be waged by means of the national militia. Even the feudal levy was unsuited to their requirements. They were waged mainly by means of hired professional armies. Parliament—a new factor in the Constitution—took pains in these circumstances to limit by statute the liabilities of the old national forces. An Act of 1328 decreed that no one should be compelled to go beyond the bounds of his own county, except when necessity or a sudden irruption of foreign foes into the realm required it.^[12] Another Act, 1352, provided that the militia should not be compelled to go beyond the realm in any circumstances whatsoever without the consent of Parliament.^[13] Both these Acts were confirmed by Henry IV in 1402.^[14] But the old obligation of universal service for home defence remained intact. It was, in fact, enforced by Edward IV in 1464, when, on his own authority, he ordered the Sheriffs to proclaim that "every man from sixteen to sixty be well and defensibly arrayed and ... be ready to attend on his Highness upon a day's warning in resistance of his enemies and rebels and the defence of this his realm."^[15] This notable incident carries us to the end of the Middle Ages, and shows us the Old English principle in vigorous operation.

FOOTNOTES:

^[10] Gervase of Canterbury. *Gesta Regum*, vol. ii, p. 97.

^[11] *Statutes of the Realm*, vol. i, pp. 96-8.

^[12] 1 Ed. III, c. 2. §§5-7.

^[13] 25 Ed. III, c. 5. §8.

^[14] 4 Hy. IV, c. 13.

^[15] Rymer, T. *Fœdera*, vol. xi, p. 524.

IV. TUDOR AND STUART DEVELOPMENTS

The Wars of the Roses, so fatal to the feudal nobility, left the national militia the only organized force in the country. The Tudor period, it is true, saw the faint foreshadowing of a regular army in Henry VII's Yeomen of the Guard, and the nucleus of a volunteer force in the Honourable Artillery Company, established in London under Henry VIII. But these at the time had little military importance, and England remained dependent for her defence throughout the sixteenth century, that age of unprecedented prosperity and glory, upon her militant manhood. Hence the Tudor monarchs paid great attention to the maintenance and equipment of the militia. The practice (which had grown up in the later Middle Ages) of limiting the normal call to arms to a certain quota of men from each county was revived. If the required numbers were not forthcoming compulsion was employed. Statutes were passed making discipline more rigid. Lords Lieutenant were instituted to take over the command, with added powers, from the Sheriffs. An important Mustering Statute (1557) was enacted, graduating afresh the universal liability to service, and making new provision for weapons and organization.^[16] William Harrison, writing in 1587, said: "As for able men for service, thanked be God! we are not without good store; for by the musters taken 1574-5 our numbers amounted to 1,172,674, and yet were they not so narrowly taken but that a third part of this like multitude was left unbilled and uncalled."^[17] This from a population estimated at less than six million all told! Such was the host on which England relied for safety in 1588, if by chance the galleons of Spain should elude the vigilance of Drake and should land Parma's hordes upon our shores. Well might the country feel at ease behind such a fleet and with such a virile race of men to second it.

The Stuarts did not take kindly to the English militia. It was too democratic, too free. James I, in the very first year of his reign, conferred upon its members the seductive but fatal gift of exemption from the burden of providing their own weapons.^[18] As he himself took care not to provide them too profusely, the force speedily lost both in efficiency and independence. The Civil War hopelessly divided it, as it did the nation, into hostile factions. The Royalist section was ultimately crushed, while the Parliamentary section was gradually absorbed into that first great standing

army which this country ever knew, the New Model of 1645. For fifteen years the people groaned under the dominance of this arbitrary, conscientious, and very expensive force. Then, in 1660, came the Restoration, and with it the disbanding of the New Model and the re-establishment of the militia. The country went wild with joy at the recovery of its freedom.

Charles II, however, was bent on securing for his own despotic purposes a standing army. Hence he obtained permission from Parliament to have a permanent bodyguard, and he gradually increased its numbers until he had some 6,000 troops regularly under his command. James II increased them to 15,000, and by their means tried to overthrow the religion and the liberties of the nation. He was defeated and driven out; but his effort to establish a military despotism made the name of "standing army" stink in the nostrils of the nation. "It is indeed impossible," said one of the leading statesmen of the early eighteenth century, "that the liberties of the people can be preserved in any country where a numerous standing army is kept up."^[19] The national militia continued, as of old, to stand for freedom and self-government. The voluntarily enlisted standing army was regarded as the engine and emblem of tyranny.

FOOTNOTES:

^[16] 4-5 P. and M., c. 2.

^[17] Harrison, W. *Elizabethan England*, chap. xxii.

^[18] 1 Jac. I, c. 25.

^[19] Speech by Pulteney, A.D. 1732: See *Parl. Hist.*, vol. viii, p. 904.

V. THE LAST TWO CENTURIES

The eighteenth century saw a constant struggle on the part of constitutionalists to get rid of the standing army altogether. Army Acts,

which recognized and regulated the new force, were limited in their operation to a year at a time, and were passed under incessant protest. Grants to maintain the army were similarly restricted. Every interval of peace witnessed the rapid reduction of the regulars. But the times were adverse. Wars were frequent, and on an ever-increasing scale of magnitude and duration. The standing army had to be maintained, and, indeed, steadily enlarged.

But the militia for home defence was never allowed to become extinct, and it enjoyed an immense popularity. In 1757 it was carefully reorganized by statute.^[20] The number of men to be raised was settled, and each district was compelled to provide a certain proportion. The selection was to be made by ballot, to the complete exclusion of the voluntary principle. During the Napoleonic war, when invasion seemed imminent, the militia was several times called out and embodied. In 1803 an actual levy *en masse* of all men between the ages of seventeen and fifty-five was made. In 1806 the principle of universal obligation on which it was based was clearly stated by Castlereagh in the House of Commons. He spoke of "the undoubted prerogative of the Crown to call upon the services of all liege subjects in case of invasion."^[21]

At the moment when he spoke, however, the imminent fear of invasion had been removed—removed, indeed, for a century—by Nelson's crowning victory at Trafalgar. From that time forward the military forces of the Crown were required not so much for the defence of the United Kingdom itself as for the provision of garrisons for the vast Empire which had grown up during the eighteenth century. These imperial garrisons had necessarily to be drawn from professional troops voluntarily enlisted. Thus the militia declined. An effort was made in 1852 to revive it, and again the underlying principle of compulsion was explicitly recognized. The Militia Act of that year^[22] contains the provision: "In case it appears to H.M. — that the number of men required ... cannot be raised by voluntary enlistment ... or in case of actual invasion or imminent danger thereof, it shall be lawful for H.M. — to order and direct that the number of men so required ... shall be raised by ballot as herein provided." The effort at revival was unfortunately vain, and when in 1859 international trouble again seemed to be brewing, instead of appealing once more to the immemorial defence of

the country, the Government weakly and with most deplorable results allowed the formation of a new body, the volunteers—a body whose patriotism was noble, whose intentions were admirable, but whose inefficiency became and remained a byword.^[23] The militia continued ingloriously, mainly as a nursery for the regular army.

Finally, in 1908, Mr. (now Lord) Haldane absorbed both volunteers and militia into the new Territorial and Reserve Forces, the militia becoming a Special Reserve.^[24] It is much to be regretted that the Act of 1908 did not expressly reaffirm the continued validity of the compulsory principle of service which from the earliest times had been the basis of the militia. But, though it did not expressly reaffirm it, it left it absolutely unimpaired and intact. Said Mr. Haldane himself in the House of Commons on April 13th, 1910: "The Militia Ballot Acts and the Acts relating to the local militia are still unrepealed, and could be enforced if necessary."

FOOTNOTES:

^[20] 31 Geo. II, c. 26.

^[21] Cobbett. *Parliamentary Debates*, vol. vii, p. 818.

^[22] 15-16 Vict. c. 50. §18.

^[23] For occasional levies of volunteers from sixteenth century onwards, see Medley, D. J., *Const. Hist.*, p. 472.

^[24] 7 Ed. VII, c. 9.

VI. CONCLUSION

Such is the condition of things at the present time. The principle of compulsory military service, obligatory upon every able-bodied male between the ages of sixteen and sixty, is still the fundamental principle of English Law, both Common Law and Statute Law. It has been obscured by the pernicious voluntary principle, which, in the much-abused name of

Liberty, has shifted a universal national duty upon the shoulders of the patriotic few. But it has never been revoked or repudiated.

It is not National Service, but the Voluntary System, that is un-English and unhistoric. The Territorial Army dates from 1908; the Volunteers from 1859; the Regular Army itself only from 1645. But for a millennium before the oldest of them the ancient defence of England was the Nation in Arms. When will it be so again?

II

COMPULSORY SERVICE AND LIBERTY

[Reprinted, with the addition of References, from the *Morning Post* of September 28th, 1915.]

I. THE PLEA OF FREEDOM

The opponents of national service pursue two lines of argument, the one historical, the other theoretical. Along the line of history they try to show that compulsory military duty is alien from the English Constitution, and that the voluntary system is the good old system by means of which Great Britain has maintained her independence, achieved her glories, and founded her Empire. Along the line of political theory they contend that the demand for national service is contrary to the spirit of liberty, that freedom is an essential characteristic of the English genius, that Britons may be persuaded but not coerced, and so on.

In the preceding study I have shown the utter baselessness of the historical argument, pointed out that compulsory service was the very foundation of the Anglo-Saxon system of defence, and concluded that whereas "the Territorial Army dates from 1908, the Volunteers from 1859, the Regular Army itself only from 1645, for a millennium before the oldest of them the ancient defence of England was the Nation in Arms." I now turn to the theoretical argument, and propose to consider what is meant by the term "liberty," and ask whether the compulsion involved in national service is incompatible with liberty properly understood.

II. THE TERM "LIBERTY"

There can be no doubt that in this country, as in America, the term "liberty" enjoys much popularity. Sir John Seeley has remarked that just as "its unlimited generality" makes it "delightful to poets," so its harmonious

sound is so grateful to the ears of the public at large that "if a political speech did not frequently mention liberty," no one would "know what to make of it or where to applaud."^[25] Matthew Arnold goes so far as to speak of "our worship of freedom," and to depict liberty as the object of a fanatical semi-religious adoration.^[26] But as a rule where an Englishman adores he does not define, and if one asks the common devotee of liberty what he understands by the abstraction before which he prostrates himself, one generally requires but a small portion of the dialectic subtlety of Socrates to involve him in a hopeless tangle of contradictions. He can no more define liberty than he can locate his soul. Mr. D. G. Ritchie truly says: "Many crimes have been done, and a still greater amount of nonsense talked in the name of liberty."^[27] Seeley, with as much justice as pungency, asserts that some writers "teach us to call by the name of liberty whatever in politics we want," and so lead us to disguise our selfishness and cowardice in the stolen garb of moral principle.^[28] At any rate, there is urgent need that before we either support or oppose any practical political measure in the name of liberty, we should clear our minds of confusion, and should reach an understanding of what precisely we mean by this vast and vague expression. It will be found, I think, upon examination, that the term "liberty," as employed in the sphere of politics, has four distinct connotations. I hope to show that in no one of these four senses is liberty incompatible with the compulsory element implicit in the principle of national service.

FOOTNOTES:

^[25] Seeley. *Introduction to Political Science*, pp. 103-4.

^[26] Arnold. *Culture and Anarchy*, chap. ii.

^[27] Ritchie. *Natural Rights*, p. 135.

^[28] Seeley: *op. cit.*, p. 103.

III. LIBERTY AS FREEDOM FROM FOREIGN CONTROL

"A free nation," says Sir William Temple, "is that which has never been conquered, or thereby entered into any condition of subjection."^[29] In this sense of freedom from foreign domination liberty is the immemorial boast of Britons. They never have been, or will be, slaves. They are, and they are determined to remain—so they proudly sing—free as the waves that wash their shores, free as the winds that sweep their hills. They are resolved that no alien tyrant shall plant his foot upon their necks. As in the Middle Ages they repudiated the claim of German Emperors and Ultramontane Popes to exercise political sovereignty over them; as in more modern times they resisted conquest by the Spaniard Philip and the Corsican Napoleon; even so would they resist to the extreme limit of endurance any attempt to-day to reduce them to servitude. The proposition that freedom in this sense of national independence is consistent with compulsory military service needs no demonstration at all. So far from there being any incompatibility between the two, it is probable that only by means of a manhood universally trained to the use of arms can the freedom of Britain and the integrity of the Empire be ultimately maintained. We shall almost certainly have to choose, not between national service and liberty, but between national service and destruction.

FOOTNOTE:

^[29] Temple. *Works* ii, p. 87.

IV. LIBERTY AS SYNONYMOUS WITH RESPONSIBLE GOVERNMENT

In a second and somewhat looser sense "Liberty is regarded as the equivalent of Parliamentary government."^[30] We speak of one type of Constitution as "free" and of another type as "unfree." The so-called "free" type of government is that in which political power rests in the hands of the Democracy, whereas in "unfree" States the people are in subjection to a ruling person or class. From the point of view of the individual subject this distinction has no meaning at all. For the laws passed by a Democratic

Parliament are coercive and compulsory in precisely the same manner and degree as are the laws of a despotic monarchy or a close oligarchy. There is, indeed, a "tyranny of the majority" which can be quite as oppressive to the individual as the tyranny of the one or the few, and much less easy to evade. From the point of view of the enfranchised community, however, the term "free" has a meaning, and its use can be defended. For if the electorate be regarded as a unit, akin to an organism, government becomes self-government, and any obligations which the community places upon itself by means of laws can be looked upon as self-limitations, imposed by free-will and capable of removal at any moment by the unfettered exercise of the power which imposed them. From this communal point of view, however, it is evident that national service involves no diminution of liberty. The community becomes not one whit less free because it decides to train itself in the use of arms and to mobilize all its resources for military purposes. It retains its capacity to demobilize any time it likes, to lay aside its arms, to pension off its drill sergeants, and to return to the paths of pacificism whenever it seems safe to do so.

FOOTNOTE:

[\[30\]](#) Seeley: *op. cit.*, p. 114.

V. LIBERTY AS ABSENCE OF RESTRAINT

It cannot be denied, however, that compulsory military service does interfere with the power of the *individual* to do as he likes. He is forced, whether he wants to or not, to undergo certain discipline in time of peace, and to face uncertain danger in time of war. National service, then, is a restriction of his liberty, if by liberty is meant the absence of all restraint. Now this is precisely the sense in which the term is most frequently used. "Quid est libertas?" (What is liberty?), asked Cicero, and he replied: "Potestas vivendi ut velis" (The power of living as you like).^[31] "Freedom," said Sir Robert Filmer, "is the liberty for everyone to do what he lists, to live as he pleases, and not to be tied by any laws."^[32] Even Locke, Filmer's

great opponent, admitted that "the natural liberty of man is to be free from any superior power on earth." But who is the man who possesses this unlimited natural liberty to live as he likes, and to act as he pleases, subject to no superior power on earth? He is either a Robinson Crusoe, existing alone on a desert island, or he is an anarchist living in the midst of anarchists, and acknowledging no civil government whatsoever. In the latter case his career is likely to be as "poor, nasty, brutish, and short" as that of the primitive savage depicted by Hobbes. For if one man is free to live as he likes, subject to no superior power, so are all. Hence in such a society of absolute freemen, human law is totally abrogated, no life is protected, no property safeguarded. Everyone, so far as his power avails, does what he pleases, takes what he covets, slays whom he hates. When his power ceases to avail, that is when a stronger than he appears upon the scene, he is himself liable to be despoiled and killed. Such is the state of society in which absolute liberty obtains. It is a chaos of incessant civil war, where "every man is enemy to every man." Its unfortunate victims, the possessors of unrestricted liberty, find that there is

War among them, and despair

Within them, raging without truce or term.^[33]

It is from this intolerable condition of perfect freedom that government saves a man. But it saves him—and in no other way can it possibly do so—by taking away from both himself and his fellows alike and in equal measure, part of their insufferable birthright of liberty. The very essence of government is restriction, compulsion, law. Under government, then, whatever may be its form, no man is free in the sense of being exempt from restraint. Natural liberty gives place in organized society to civil liberty, which is a much more modest and limited thing. "Civil liberty," says Blackstone, "is no other than natural liberty so far restrained by human laws as is necessary and expedient for the general advantage of the public."^[34] In the same sense Austin defines it as "the liberty from legal obligation which is left or granted by a sovereign government to any of its own subjects."^[35] But the most luminous definition is that of Montesquieu, who says: "La liberté est le droit de faire tout ce que les lois permettent."^[36] Those who would understand what true civil or political liberty is, and what are its necessary limitations, should imprint this profound utterance upon their

memories, and employ it as a universal test of sound thinking on the subject.

"Liberty is the right to do all that the laws allow"—no more, and no less. Liberty, then, in the sphere of politics, is not the absence of all restraint whatsoever, but only the absence of all restraint except that of the law. Thus the freedom of which Britons boast—"English liberty"—is not a licence to anyone to do as he likes, but is merely the right of everyone to do what the laws of England permit, and it is a splendid possession merely because the laws of England are eminent for justice and equity. "English liberty" is perfectly consistent, as we all admit, with compulsory registration, vaccination, education, taxation, insurance, inspection, and countless other legal coercions. From our cradles to our graves we are beset behind and before by government regulations; yet we rightly assert that we are free. If then the laws of England add one more coercion, and proclaim anew the duty of universal military service, not only will they do a thing consonant with justice and equity, they will also do a thing which does not in the smallest degree diminish any individual's civil liberty.^[37]

FOOTNOTES:

^[31] Cicero. *Parad.*, v, 1.

^[32] Filmer. *Patriarcha*, quoted and criticized by Locke, *On Government*, book ii, chap. iv.

^[33] Shelley. *Ode to Liberty*, Canto 2. Compare the description of *Huriyeh* (Liberty) given by Sir Mark Sykes in *The Caliphs' Last Heritage*. I quote the following from a review in *The Spectator*, of November 27th, 1915: Sir Mark Sykes saw *Huriyeh* (Liberty) at work in the distant provinces of the Empire. "What, O father of Mahmud," he said to an old Arab acquaintance, "is this *Huriyeh*?" The "father of Mahmud" replied without hesitation "that there is no law and each one can do all he likes." Neither was this lawless interpretation of liberty confined to Moslems. The Greek Christians in the neighbourhood of Hebron were "armed to the teeth and glad of *Huriyeh*, for they say they can now raid as well as other men." In Anatolia, a muleteer who had been discharged from Sir Mark Sykes's service "spent all his time singing 'Liberty—Equality—Fraternity,' the reason being that the

Committee at Smyrna released him from prison, where he was undergoing sentence for his third murder."

[34] Blackstone. *Commentaries*, i, 140.

[35] Austin. *Jurisprudence*, p. 274.

[36] Montesquieu. *Esprit des Lois*, p. 420.

[37] Cf. Philip Snowden, *Socialism and Syndicalism*, p. 175. "When all submit to law imposed by the common will for the common good, the law is not slavery, but true liberty."

VI. LIBERTY AS THE OPPORTUNITY FOR SERVICE

Liberty as absence of restraint is, however, a merely negative thing; it is a "being let alone." Some great writers, John Stuart Mill for example, treat it as though it had only this negative character, and as though to be let alone were necessarily and in itself a good thing. But others have truly and forcefully shown, first, that to be let alone may sometimes be a doubtful blessing, and, secondly, that liberty has a further and positive aspect not less important than the negative. Sir J. F. Stephen, in his *Liberty, Equality, Fraternity*, vigorously criticizes Mill's negative theory. Matthew Arnold in *Culture and Anarchy* (a work which well repays perusal at the present time) pours delightful but destructive ridicule upon "our prevalent notion that it is a most happy and important thing for a man merely to be able to do as he likes." Thomas Carlyle, in *Past and Present* and elsewhere, vehemently expounds a positive ideal of liberty which involves strenuous work for the good of man and for social advancement. "If liberty be not that," he concludes, "I for one have small care about liberty." But first in eminence among the exponents of the positive aspect of liberty stands Thomas Hill Green, of Oxford. In his works he contends that liberty is more than absence of restraint, just as beauty is more than absence of ugliness.^[38] He holds that it includes also "a positive power or capacity of doing or enjoying something worth doing or enjoying." He agrees with Mazzini that complete freedom is "found only in that satisfying fulfilment of civic duties

to which rights, however precious, are but the vestibule."^[39] He looks at freedom, that is to say, from the communal and not from the individual point of view. Man is a political animal, and only in an organized society can he attain his highest development. It is not good for man to be alone; each individual needs the companionship and co-operation of his fellows; no one in solitude can attain even to self-realization. Hence, government is more than a restraining power; it is also an organizing power. It not only prevents its subjects from injuring one another; it places them where they can most effectively aid one another and work together for the common weal. It frees their faculties from the impotence of isolation, and opens up to them the unbounded possibilities of corporate activity. Hence, liberty on its positive side becomes merged in national service, in the broad sense of the fulfilment of the duties of citizenship. Thus he is an enemy of freedom who holds himself aloof from his fellows and declines to bear his share in the general burden. If, then, the State calls upon all its subjects to join together in undertaking the supreme task of national defence, every true lover of liberty must respond "Here am I."

FOOTNOTES:

^[38] Green, *Principles of Political Obligation*, p. 110-5.

^[39] Cf. MacCunn, *Six Radical Thinkers*, p. 259.

III

THE VOLUNTARY PRINCIPLE

[Reprinted from the *Morning Post* of December 28th, 1915.]

I. THE IDEA OF VOLUNTARISM

It is sometimes said that Britons are a common-sense and practical people, but a people impervious to ideas; that they are quick at the invention of expedients, but slow to recognize and follow general principles. This statement may be true of the nation as a whole; but it is lamentably untrue in respect of our politicians. They do somehow now and again get ideas into their heads, and when once they are there it seems as though nothing on earth or from heaven can eradicate them. I suppose that the explanation of this steadfast consistency, or unteachable obstinacy, is that their ideas soon pass out of their own control. Principles once professed are formulated into programmes, programmes are solidified into platforms, and platforms are planted upon the insensate rock of party organization. Hence, to abandon an idea (even when it is found to be erroneous) or to repudiate a principle (even when it is proved to be false and pernicious) involves a political upheaval akin to a revolution. It is easier to continue to stand on an obsolete platform and watch a nation drift to disaster than to abandon the platform and endanger the party organization—euphemistically termed for the occasion "national unity." An excellent case in point is the pathetic devotion of successive Governments to the voluntary principle of military service.

II. ITS ESTABLISHMENT

As we have already seen, the voluntary principle—a comparatively modern novelty—is one which established itself in our constitution during the long period of peace that followed the Battles of Trafalgar and Waterloo, and it had its *raison d'être* in the circumstances of the time. Our Navy had secured

the undisputed command of the sea. Our shores and the shores of our distant Dominions were secure from invasion. All that we had to fear was an occasional Chartist riot, or Irish rebellion, or Indian mutiny, or petty Colonial war. To suppress these sporadic disorders a small professional army was incomparably the best instrument, and it was, of course, best secured and maintained by the system of voluntary enlistment. Thus in the halcyon Georgian and Victorian days the right inherent in every sovereign Government to call upon its subjects for national service sank into forgetfulness, the ancient military obligations of Englishmen fell into desuetude, and voluntarism held the field.

A quarter of a century ago, however, *i.e.*, soon after the present German Emperor came to the throne, circumstances radically changed. Germany obtained Heligoland and began to convert it into a naval base; she developed marked colonial activity and threatened British ascendancy in many parts of the world; she formulated a maritime programme and commenced the construction of a formidable navy. Nor was she alone. Other Powers also—Powers at that time regarded as less friendly to Britain than Germany was supposed to be—started in the race for overseas dominions, international commerce, and strong fleets. It became evident to the most casual observer that sooner or later British command of the sea might be challenged, Britain and the Dominions attacked, and the future of the Empire put to the issue of war. Hence prudent patriots, who in course of time organized themselves into the National Service League under the guidance of Lord Roberts—*clarum atque venerabile nomen*—urged the revival of the old-time duty of universal military training in preparation for, and as the best safeguard against, the growing peril. But no! Politicians had committed themselves to the voluntary principle. The party caucuses would not risk the sacrifice of place and power that might ensue from the preaching of the unpalatable doctrine of duty and discipline to their masters, the electors. Hence, amid dangers daily growing greater in magnitude, the defence of the Empire on land (the garrisoning of one-fifth part of the land-area of the globe) was left to the diminutive professional force established merely for Imperial police purposes—a force smaller than that which Serbia felt necessary to guard her independence, or Switzerland to assure her neutrality.

III. THE RESULT

What was the result? It was this: that the British Empire, the richest prize that the world has ever displayed, spread out its treasures before the envious eyes of militant nations, practically undefended, save for its slender ring of circling ships. There it lay, a constant and irresistible lure, especially to that parvenu and predatory Germanic Power which had appeared upon the European scene, as the offspring of treachery and violence, in 1871. Thus those politicians—they were to be found in all parties—who refused to face the new conditions, who persisted in maintaining that the voluntary principle, which sufficed to police an Empire externally secure, would also guard it against a world in arms, did their unwitting best to render an attack inevitable, and to ensure that when it burst upon us it should do us the maximum of damage.

In due time, that is, when Germany thought that "the day" had dawned, the war came. Then the voluntary principle manifested its proper fruits. We found ourselves suddenly called upon to confront the supreme crisis of our fate with a gigantic proletariat untrained and unarmed, and with a diminutive army (below even its nominal strength), wholly inadequate to the magnitude of its tasks. What were the consequences? They were these: First, that our devoted Expeditionary Force, insufficient and unsupported, was sent across the Channel to almost certain and complete annihilation; secondly, that masses of reserves urgently needed on the Continent had to be kept in these islands to counter the risks of invasion; thirdly, that the mobility of our Navy had to be sacrificed to the same necessity of domestic defence (hence the disaster to Admiral Cradock); and, finally, that Belgium and North-East France had to be abandoned to the enemy—to be recovered later, if possible, at the cost of tens of thousands of lives.

One would have thought that at such a crisis of destiny our politicians would have faced the facts, would have realized that the time had come to summon the nation, as a disciplined whole, to front its peril and do its duty. If they had but had the courage to do so, who can doubt the loyalty of the response? But, once more, No! All sorts of irrelevant considerations of petty domestic politics—matters of votes and seats and party prejudices—determined the issue. The voluntary principle must at any cost be maintained sacrosanct and intact. Hence, to get the necessary men—or,

rather, far fewer than the necessary men—every variety of extravagant and humiliating expedient had to be adopted. Hundreds of thousands of pounds of public money were squandered in advertisement and appeal, and a chaos of indiscriminate enlistment was inaugurated. Again, with what results? With these results: First, that myriads of middle-aged men with families have been taken while unmarried slackers have been left; secondly, that invaluable war-workers have been drawn from necessary tasks while useless wastrels have remained at large; thirdly, that the rate of recruiting has been spasmodic and wholly incalculable, that our armies have never been quite strong enough for the successive operations assigned to them, and that consequently a vast, needless, and largely fruitless sacrifice of the very cream of our nation's manhood has taken place. To the idol of voluntarism a veritable holocaust of victims has been offered up.

IV. THE PRESENT SITUATION

The voluntary principle, after seventeen months of inconceivably destructive war, still nominally holds the field.^[40] Our sovereign politicians have up to the present remained verbally true to it; but at what a price! They have indefinitely postponed victory; they have allowed the sphere of operations to be immensely enlarged; they have been compelled through sheer military feebleness to witness neutral nations being drawn on to the side of the enemy; they have been unable to strike a decisive blow anywhere. Thus the war drags on inconclusively at a cost of £5,000,000 and 2,000 casualties every day. But the voluntary principle has been respected and vindicated! Has it? True it is that there has been a magnificent response to the Government's appeals. The patriotism and devotion of one half of the nation have effectively enabled the other half to evade its duty. But the time has again come when the demand for more men is imperative. Voluntarism is making its last efforts. Its devotees in their desperate endeavours to prevent its formal abandonment are eliminating from it every element of free will, and are introducing every device of veiled compulsion. Canvassers and recruiting-sergeants have brought immense pressure to bear upon every eligible man, under threats that unless he "volunteers" he will

shortly be fetched, and fetched on less favourable terms than those now offered. Moreover, all sorts of other kinds of pressure are added. The papers are full of instances. For example, the Foreign Office is refusing passports to men of military age; the great shipping lines are declining to take eligible emigrants; employers are refusing work to applicants who they think might serve. Finally, Mr. Asquith, in the House of Commons, gives the whole case away, and from the voluntarist point of view perpetrates the great apostasy, by admitting that our voluntary system of recruiting is "haphazard, capricious, and unjust," and by protesting that he has "no abstract or *a priori* objection of any sort or kind to compulsion in time of war," adding that he has no intention whatever to go to the stake "in defence of what is called the voluntary principle."^[41] Poor "voluntary principle"! Already abandoned in practice, and now thrown over by its former high-priest!

FOOTNOTES:

^[40] This was written in December, 1915. A few weeks later the Military Service Bill became law. Compulsion is to be applied from March 1st, 1916.

^[41] House of Commons debate, November 2nd, 1915.

V. THE FUTURE

Is there any shred or remnant of this deserted and discredited voluntary principle that is worth saving? There is not. It is the last disreputable relic of the extreme individualism of the Manchester School of the early nineteenth century, which taught a political theory that has been abandoned by all serious thinkers. Everyone now admits that it is the function of the State to secure as far as it can the conditions of the good life to its citizens. It is the logical and inevitable corollary that it is the duty of every citizen to support and safeguard the State. It has long been one of the gravest weaknesses of our modern democracy that, while it has insisted vehemently upon its claims against the State—claims to education, employment, office,

insurance, pension, and so on—it has remained comparatively oblivious to its responsibilities. Its so-called political leaders, who too often are but self-seeking flatterers fawning for its favour, have persistently encouraged it to concentrate its efforts upon getting without giving. It has been taught that it is proper to use political power in pursuit of selfish aims and to employ all manner of compulsion therein; but in the matter of national service it has received soothing lessons on the surpassing glories of the voluntary principle. It is the State which is to be coerced by threats of passive resistance or general strikes; but if the State attempts coercion in the exercise of its functions it is met by the passionate proclamation of the rights of personal freedom. Similarly, we have the amazing spectacle of Trade Unionists meeting in congress to condemn "conscription" and at the same time sanctioning the most extreme measures of illegal persecution to drive non-Unionists into the ranks of their own organizations. It is a monstrous and intolerable perversion of all sound political principles. The whole sorry business is a flagrant example of the subtle way in which a democracy can be cajoled, corrupted, and depraved.

I elaborated this point in a letter to the *Observer* which the Editor kindly allows me to reprint here. It will be found in the issue of January 17th, 1915:

One of the most curious phenomena of present-day politics is the opposition offered by collectivists to conscription—under which term they persistently and disingenuously include both the compulsory service of the German army and the very different universal military training of the Swiss citizen.

Even Mr. Herbert Spencer and the extreme individualists of his school admitted that national defence is a proper function of the State, and that a government may rightly use compulsory powers to safeguard the community from attack.

But Mr. Arnold Bennett and the semi-socialists of the *Daily Chronicle* and the *Daily News*—although they are filled with horror and indignation if it is suggested that an artisan should be allowed to choose whether or not he will enjoy the advantages of the Insurance Act; or that a collier, if he wishes to do so, should be permitted to work

for more than eight hours a day; or that a labourer should be exempted from persecution as a blackleg if he prefers to remain outside the fold of a trade union—are fired with a long-dormant zeal for individual liberty, if it is urged that a young man's citizenship is incomplete until he has been called and prepared to defend his home and his country in case of need.

Their collectivism is, in fact, a peculiarly perverted or inverted type of individualism. It insists on the right of the individual, if unemployed, to come to the State for work; if in poverty, to come to the State for relief; if ignorant, to come to the State for education: but it strenuously resists the exercise by the State of its reciprocal claim on the service of the individual. It is engrossed by the contemplation of the rights of the individual and the duties of the State; it ignores the rights of the State and the duties of the individual.

It is true that our voluntary system of military service has done wonders in this war, far more indeed than could ever have been expected of it; but this does not alter the fact that it is *wrong in principle*. It is quite conceivable that a similar voluntary system of monetary contributions would, if compulsory taxation were abolished, supply the necessities of government; but it would be a most iniquitous system, pressing heavily on the generous, and allowing the niggardly to escape. We all, in fact, admit that it would be entirely improper to replace the income-tax form by the begging-letter. For precisely the same reasons it is entirely improper that enlistment for home defence should depend on the voluntary sacrifice of the patriotic minority, while the careless and worthless majority elude their duty.

It is, moreover, deeply humiliating to the national pride to see the protection of our shores, and the existence of our Empire, dependent on the response made to advertisements, to platform appeals, to music-hall songs, and to the kisses so generously proffered by popular actresses.

It will be no small compensation for the immeasurable losses of this war if the lofty old-English ideals of duty and service are restored to their rightful place in our political system, and if in respect of the essentials of national

existence, viz., defence of the realm and obedience to law, we completely eliminate and frankly repudiate—as we have already done in the sphere of taxation—the enervating one-sided individualism of the voluntary principle.

IV

PASSIVE RESISTANCE

I. THE NEW PERIL

For a long time past there has existed in this country a sort of smouldering rebellion known as passive resistance. It is difficult to say when it had its origin; but probably it could be traced back to the Reformation. For it is merely a veiled manifestation of that anarchic individualism and that morbid conscientiousness—the extremes of qualities admirable in moderation—which first became formidable in England on the break-up of mediæval Christendom. In recent times it has displayed itself in many new forms, and on an increasingly large scale, until now, in this great crisis of our fate, it has grown to be a serious menace to the national unity, and a grave danger to the very existence of the State. We have in our midst at the present day—to mention only the leading specimens—Ritualists who refuse to obey judgments of the Privy Council, or to heed injunctions issued by bishops appointed by the Crown; Anti-Vivisectionists who resist regulations regarded as essential by the health authorities; Undenominationalists who decline to pay rates necessary to maintain the system of education established by law; Christian Scientists whose criminal neglect in the case of dangerous diseases not only renders them guilty of homicide, but also imperils the welfare of the whole community; Suffragists who defy all law comprehensively, on the ground that the legislature from which it emanates is not constituted as they think it ought to be; Trade Unionists who combine to stultify any Act of Parliament which conflicts with the rules of their own organizations; and finally, a No-Conscription Fellowship whose members expressly "deny the right of Government to say, 'You *shall* bear arms,'" and threaten to "oppose every effort to introduce compulsory military service into Great Britain."^[42] Here is a pretty collection of aliens from the commonwealth! It contains examples of almost every variety of anti-social eccentricity. So diverse and conflicting are the types of passive resistance represented that there is only one thing that can be predicated of all the members of all the groups, and it is this—that they are rebels.

FOOTNOTE:

[42] No-Conscription Manifesto printed in full in the *Morning Post*, May 31st, 1915.

II. PASSIVE RESISTANCE AS REBELLION

The essential preliminary to any useful discussion of passive resistance is the clear recognition of the fact that it is rebellion, and nothing less. To say, or admit, this is not necessarily to condemn it; for there are few persons to-day, I suppose, who would contend that rebellion is never justifiable. All it asserts is that passive resistance has to be judged by the same measures and according to the same standards as any other kind of revolt against constituted political authority. It is all the more needful to make this plain because some of the milder but more muddled among the resisters try to shut their eyes to the fact that they are rebels. They claim to be sheep and not goats. They call themselves Socialists; they profess an abnormal loyalty to the idea of the State; they protest their devotion to the Great Society; they ask to be allowed to make all sorts of sacrifices to the community; they announce their willingness to do anything—except the one thing which the Government requires them to do. The exception is fatal to their claim. "To obey is better than sacrifice, and to hearken than the fat of rams." The State does not and cannot submit the validity of its enactments to the private judgment of its subjects. It expresses and enforces the general will, and it dare not leave to the choice, or even to the conscience, of the individual an option as to which of its commands shall be obeyed, and which not. To do so would be to loose the bands of society, to bring to an end the reign of law, and to plunge the community once again into that primal chaos of anarchy from which in the beginning it painfully emerged. The State demands, and must necessarily demand, implicit obedience. From the loyal it receives it. Those from whom it does not receive it are rebels, no matter how conscientious they may be, how lofty their moral elevation, how sublimely passive their resistance. So far as their disobedience extends they are the enemies of organized society, disrupters of the commonwealth,

subverters of government, the allies and confederates of criminals and anarchists. It is worth noting, moreover, how easily their passive resistance develops into more active forms of rebellion. Not for long was the Suffragist content to remain merely defensive in revolt; soon she emerged with whips for Cabinet Ministers, hammers for windows, and bombs for churches. Resistant Trade Unionists rapidly and generally slide into sabotage and personal violence. The No-Conscriptionists of Ireland threaten through Mr. Byrne, M.P., for Dublin, that "if Conscription is forced on Ireland, it will be resisted by drilled and armed forces"^[43]—a delightfully Hibernian type of anti-militarism, which, nevertheless, throws a lurid light on the real meaning of the movement. It is seen to be rebellion, open, naked and unashamed.

FOOTNOTE:

^[43] See *Times*, November 22nd, 1915.

III. THE RIGHT OF REBELLION

Passive resistance, then, is rebellion; but, as has already been admitted, it is not on that account necessarily unjustifiable. An established government may be so hopelessly iniquitous that it ought to be overthrown; an organized society may be so irremediably corrupt that it merits disruption; duly enacted laws may, when judged by moral standards, be so flagrantly unjust as to demand the resistance of all good men. There is no need to labour the point: actual examples crowd upon the mind. Who would condemn the revolt of the Greeks against Turkish rule? Who would contend that the degenerate society of the later Bourbon monarchy did not deserve dissolution? Who would maintain that John Hampden and Oliver Cromwell had no moral warrant for their resistance to Charles I, or their successors to James II. We may freely allow that in these cases, and in many similar ones, there existed on ethical grounds a right, or more strictly a communal duty, to rebel. Few would now proclaim with Filmer the divine right of any government to exact obedience quite irrespective of the wishes or the

interests of its subjects. Still fewer would agree with Hobbes that an original contract precludes for ever all opposition to sovereign political authority. The ground on which political obligation is asserted has been shifted. The State is recognized as "an institution for the promotion of the common good," and it is admitted that if it ceases to promote the common good the obligation to obey it is transformed into an obligation to reform it, or even to

Shatter it to bits—and then
Remould it nearer to the heart's desire.

But, viewed thus, the right of rebellion assumes an aspect of awful responsibility, perhaps the most tremendous within the sphere of politics that the mind can conceive. For rebellion means the breaking-up of the existing order, the throwing of institutions into the melting-pot, the letting loose of incalculable forces of discord and destruction, the suspension of law, the return to chaos, in the hope that out of the welter a new and better cosmos—one more fitted to promote the common good—may be evolved. Every rebel, or prospective rebel, whether of the passive or the active type, ought to ponder well the logical consequences of his revolt against authority, ought to consider the inevitable results that would flow from the general adoption of the principles which he professes, ought to decide whether or not he really desires to overthrow the polity under which he lives, ought to ask if he and his fellows are able to face with any serious hope of success the colossal task of constructing a new society on the ruins of the old. Now the historic rebels to whom I have referred above by way of example—the Greek Nationalists, the French Revolutionists, the English Puritans and Whigs—did not hesitate to acknowledge the nature of their acts, and were not unprepared to face their consequences. They did not deceive themselves, or attempt to deceive others, by false professions of loyalty. The Greeks proclaimed their undying hostility to the Turks, fought them, shook off their yoke, and erected a national kingdom on the ruins of Turkish tyranny. The French Revolutionists openly declared war upon the old regime, eradicated it by means of the guillotine, and established a republic where it had been. Similarly the English Puritans repudiated allegiance to Charles I, brought him to the block, and instituted the Commonwealth in his place; while the Whigs drove out James II and set up

the constitutional monarchy of William and Mary. One can respect heroic rebels of these types. They were honest and open; they attacked great abuses; they took great risks, and they achieved notable results. Very different are our modern rebels. They profess with nauseating unctious loyalty to the State whose dominion they are undermining; they claim to be exceptionally virtuous members of the Society whose unity they are destroying; above all they continue to demand with insolent effrontery the protection of the very law and the very courts whose authority they are denying and defying. They can be freed from the charge of the most revolting hypocrisy only on the plea that "they know not what they do."

IV. REBELLION AGAINST A DEMOCRACY

It is granted, then, that rebellion may sometimes be not only a justifiable act, but also a bounden public duty. Three examples have been given which perhaps may be allowed to have illustrated and confirmed this view. It will be noted, however, that in each of the cases cited the revolt was that of an oppressed community against a government in which it had no part or lot, and over which it had no constitutional control. Rebellion against a democracy on the part of members of that democracy stands on a widely different footing. It is treachery as well as insurrection. One can, indeed, conceive circumstances which would justify it; but they would be rare and exceptional, and that for two reasons. First, in a democracy constitutional means are provided for the alteration of law and even for the remodelling of the form of government. Secondly, if a democratic government is undermined by disobedience, discredited by successful defiance, destroyed by treasonable betrayal on the part of its own professed supporters, there is nothing to take its place; the community is bound either to drift into anarchy, or to revert to some sort of tyranny. Let us consider these two points in turn. (1) The essence of democracy is government according to the will of the majority. This almost necessarily implies government in opposition to the will of one or more minorities. But democratic minorities have a remedy—and it is the peculiar virtue of democracy to provide it. It is this: by means of argument, persuasion, and appeal; by press agitation and

platform campaign; through organization and combination, to convert themselves into a majority. The whole of our English political system, the very existence of our democratic constitution, depends upon the recognition and acceptance of this rule of the game. If the will of the majority is not to be regarded as authoritative, measures for reform of the franchise, extension of the suffrage, and adjustment of the electoral machine have no rational meaning at all. They are merely vanity and vexation of spirit. What matter who makes the laws, or what laws are made, if laws are not to be implicitly obeyed? Our extremists want to have it both ways: they want to enforce law with majestic severity as "the Will of the People," when they are in a majority; but they also want to defy law with conscientious obstinacy as a violation of personal freedom when they are in a minority. Some members of "The Union of Democratic Control" are also members of the "No-Conscription Fellowship"! Could inconsistency or muddle-headedness go further? Those who wish to rule as part of a majority must be prepared to be overruled as part of a minority. If minorities, instead of employing the constitutional machinery placed at their disposal to secure the repeal of obnoxious laws, are going to resist and rebel whenever the majority does something of which they strongly disapprove, there is an end of democratic government altogether, and a reversion to the state of nature. T. H. Green in his *Principles of Political Obligation* puts the case clearly and well. He asks this very question, What shall an individual do when he is faced by a command of a democratic government which he believes to be wrong? He replies: "In a country like ours with a popular government and settled methods of enacting and repealing laws, the answer of common sense is simple and sufficient. He should do all he can by legal methods to get the command cancelled, but till it is cancelled, he should conform to it. The common good must suffer more from resistance to a law or to the ordinance of a legal authority than from the individual's conformity to the particular law or ordinance that is bad, until its repeal can be obtained."^[44] Here we have the true ground of the duty of obedience. The antagonistic principle of passive resistance provides a charter for criminals and anarchists.

(2) The second point needs little enlargement. It is clear from many examples in both ancient and modern history that if a monarchy is overthrown an aristocracy can take its place, and that if an aristocracy is dispossessed of power, room is made for a democracy. But what do our

rebels against democracy propose to substitute for the sovereign will of the majority, if they succeed by resistance in reducing it to impotence? Possibly they hope that their own exalted will may prevail. Let them not flatter themselves by any such vain dream. Even assuming what is improbable, viz., that they remain united among themselves, can they suppose that their example of successful revolt will remain without imitators, or that their anti-social doctrines will never be applied again? If they will not render obedience when they are in a minority, who will obey them even if they have a majority behind them? Government will cease; the reign of order will be at an end; Society will be dissolved amid "red ruin and the breaking-up of laws."

FOOTNOTE:

[44] Green. *Principles of Political Obligation*, p. 111. Cf. Ritchie, *Natural Rights*, p. 243.

V. THE DUTY OF THE STATE

The case seems clear. Passive resistance is rebellion, and it is entirely inconsistent with loyalty to any form of government. In relation to democratic government it is, moreover, on the part of members of the democracy, treachery of a peculiarly heinous type, since it is a betrayal of the sovereign community by those within its own ranks. If the sovereign community does (as it easily may) by the vote of its majority make enactments which seem to any one of its subjects to be morally wrong, that subject has two legitimate courses open to him. He may either obey under protest, and meantime use all lawful influence at his disposal to convince the majority of the error of their ways, and convert them to his way of thinking; or he may withdraw from the community and its territories altogether, and go to some other part of the wide world where the obnoxious enactment is not in force. What he may *not* do, is to remain within the community, enjoy all the advantages of its ordered life, exercise its franchises, receive the protection of its forces, claim the securities of its

courts and the liberties of its constitution, and at the same time refuse to render it obedience.

If in his misguided perversity he adopts this last-named course, the duty of the State is plain. It is to call him to submission, or to withdraw its protection from him. The person who will not recognize the State's sovereignty, has no claim upon the services of the State. The first essential of a government is that it should govern. It should, of course, exercise the utmost care in issuing commands to avoid as far as possible the giving of offence to tender consciences; but when once its deliberate commands are issued, and so long as they remain unrepealed, it should enforce them with calm but inexorable determination. Nothing is more fatal to the very foundations of political society, than the spectacle of a government that can be defied with impunity.^[45] That demoralizing spectacle has been seen far too often during recent years, and at the moment when the war broke out it had led us to the verge of national disaster. The war has brought us into closer touch with realities than we had been for many a long year before, and it has taught us how ruinous it is in fatuous complacency to "wait and see" whither disorder, disloyalty, and disobedience will conduct us. If, however, there are still in our midst ministers who tremble before rebellion, and do not know how to act in the presence of organized passive resistance, let me commend to them the worthy example of Edward I, who in 1296 was faced by a general refusal on the part of the clergy to pay taxes. He simply excluded them from the protection of the laws, and closed his courts to their pleas. A few weeks of well-merited outlawry brought to an end their ill-advised experiment in passive resistance.

FOOTNOTE:

^[45] Maine (*Popular Government*, p. 64) emphasizes this point. "If," he says, "any government should be tempted to neglect, even for a moment, its function of compelling obedience to law—if a Democracy, for example, were to allow a portion of the multitude of which it consists to set some law at defiance which it happens to dislike—it would be guilty of a crime which hardly any other virtue could redeem, and which century upon century might fail to repair."

V

CHRISTIANITY AND WAR

I. A CONFLICT OF CONVICTIONS

Few of those who lived through the critical ten days that culminated in the outbreak of the Great War in August, 1914, will ever forget the conflict of emotions which the events of that dramatic period called forth. If I may speak of myself—though I think that I am merely one of a large class—I was torn by the contending convictions, first, that every consideration of honour and policy made it necessary for Britain to go to the aid of Serbia, Belgium, France, and Russia in their struggle against the wanton attack of the Central Empires; but, secondly, that war is a relic of barbarism, wholly incompatible with civilization, and entirely antagonistic to the Christian ideal. On the one hand I realized the magnitude of the German menace to the Commonwealth of Europe; recognized that the Teutonic race had long plotted conquest, and that it was out for world-dominion; perceived the significance of its monstrous demands on Serbia, and its shameless violations of its treaty obligations to Luxemburg and Belgium; saw that the triumph of the imperial militants would involve the disruption of the concert of the nations, the abrogation of International Law (laboriously instituted through three centuries of painful effort) and the collapse of the democratic order; and felt, finally, that upon British intervention depended the very existence of the British Empire with all that it means of good to one-fifth part of the human race. Over against this group of convictions I was confronted on the other hand by a vision of the cosmopolitan and pacific Kingdom of God as proclaimed in the Sermon on the Mount, and exemplified by Christ and His disciples in Palestine, long ago—a Kingdom whose law is love; whose fundamental principles are inexhaustible goodwill, meekness, gentleness, brotherly-kindness and charity; whose administration works along the gracious lines of sacrifice, unselfish devotion, and untiring beneficence. Obviously, within the limits of such a Kingdom war is inconceivable. Under such a regime, if it were universally established, the one service which could never be demanded would be

military service. How can the consecrated servant of the Prince of Peace in any circumstances become a man of war?

The reconciliation of the contradiction is, I think, not impossible. It is to be effected, it seems to me, by recognizing that unflinching resistance to evil is the supreme duty of the present, while the realization of the ideal, pacific, and world-wide Kingdom of God is the goal of the future; and, further, that the attainment of the goal depends upon the performance of the duty. At the moment our high task is to defend our homes, our rights, our liberties, our institutions, our standards of justice, our hopes for humanity, against the diabolical aggressor. In a happier day and a freer world we may hope that, as one of the results of our present struggle and sacrifice, beneath the sway of restored and vindicated law, a larger scope may be given for the spread of the divine realm of love. The vindication of law must precede the proclamation of peace. The goodwill that shall put an end to strife must be based on triumphant justice and sovereign righteousness. As yet we see not law supreme, or justice and righteousness in the ascendant. So long as violence is rampant, and evil stalks abroad, we must be prepared to fight even to the death. It is vain—it is worse than vain; it is treasonable—to cry "Peace, peace," when there is no peace, and when the conditions of peace do not exist.

II. THE RELIGION OF THE BIBLE

The distinctive feature of the religion of the Bible is its indissoluble connection with righteousness. Other primitive cults have been either domestic, or economic, or political. Thus the Lares and Penates safeguarded the pious Latin family irrespective of its ethical character; the Greek deities, such as Dionysus and Aphrodite, were frankly immoral, but if propitiated they gave plenty and prosperity; the great gods of Rome were political personages who had no regard for private virtues, and their proper worship was performed by State officials whose functions strictly fell within the department of foreign affairs. But the religion of the Chosen People, under both the Old and the New Covenant, was, and still is, a faith whose keynote is divine law. The standard which has led the hosts of Jehovah to victory

throughout the ages has been the lofty ethical code which it has displayed and maintained. The Bible begins with the story of man's fall from righteousness, and it ends with a vision of his restoration to ideal holiness. The prime purpose of the religion of the Bible is the conquest of sin, the defeat of the devil, the redemption of humanity, the recovery of the lost paradise, and the re-establishment of the Kingdom of Heaven. Milton made no mistake when he chose this as the central theme of his two immortal epics. Everything else is secondary.

Now the means which the Bible describes and recognizes for the attainment of its supreme end are broadly two, viz., the persuasion of love, and the compulsion of force. In the case of all those who can be reached thereby the gentler means are employed. With what infinite patience were the Children of Israel led throughout their chequered career; with what divine compassion were the faltering disciples guided along the way of salvation! But where gentler means fail or are inapplicable, sterner measures are unhesitatingly sanctioned. The Bible knows nothing of the pernicious Manichæan objection to the use of physical force to attain moral ends. In the beginning the rebellious angels were overthrown in battle by Michael and his hosts. The consummation of all things is to be reached as the result of the field of Armageddon. The Old Testament history is a long record of wars undertaken at the divine command, and to the Children of Israel Jehovah was peculiarly the God of Battles. Nor does the New Testament, with all its insistence on the power of love, ever condemn the Old Testament theology as false, ever repudiate force as a moral agent, ever denounce war as necessarily evil. On the contrary, it celebrates the achievements of the heroes of Israel who "waxed valiant in fight"; it announces irremediable destruction to the impenitent and unyielding wicked; it recognizes to the fullest degree the civil authorities who wield the sword of justice, and make themselves a terror to evil-doers; it proclaims that those who take the sword shall perish by the sword; it admits centurions and soldiers to the company of the elect without suggesting that they should forsake their military duties; it tells how on one notable occasion Christ Himself used force to cleanse the temple, and so for ever sanctified its use.

III. THE DOCTRINE AND PRACTICE OF THE CHURCH

The Church as a whole during the long and varied course of her history has been true to the general Biblical principle that evil should, where possible, be overcome by gentle means which give the evildoer room for repentance, but that it should be stamped out by the force of inexorable justice where gentle means have failed. No one can contend, I fear, that the Church has always been wise or Christly in her application of this sound Scriptural doctrine. She has, it must be admitted, sometimes encouraged premature resort to force, and has given her blessing to countless wanton wars. She has at other times treated as evils to be suppressed by violent means offences which have been mere deviations from her own arbitrary standards, and not violations of the eternal laws of truth and right. Nevertheless, however imperfect her practice, all her great teachers from Athanasius to Aquinas, and from Aquinas to the present day, have rightly recognized the legitimacy of the employment of force for moral purposes in the last resort, have admitted the compatibility of Christianity with military service, and have confessed that, evil as war is, there are evils still greater, and that the duty of every Christian man may be to fight lest the cause of righteousness and justice should suffer defeat. If the Church had taught otherwise—if she had been captured by the Gnostic heresy of non-resistance—Mediæval Christendom and Western Civilization would inevitably have been destroyed by the assaults of Huns and Saracens, Magyars and Tartars, Vikings and Turks; while within the borders of Christendom itself law and order would have perished at the hands of wicked and violent men. Similarly in modern times common Christian opinion has agreed that there are causes worth fighting for and worth dying for. The English Puritans, for instance, including the early Quakers, considered that political freedom and religious liberty were ideals that justified and indeed demanded armed resistance to tyranny. During the last three centuries there have been few who, on religious grounds, have condemned the revolt of Christian peoples against Turkish misrule. In the American Civil War many professed pacifists felt that for the abolition of slavery they must need take arms. In our own recent history men like Havelock, Gordon, and Roberts have regarded as sacred trusts the tasks of saving women and children from massacre, of suppressing fanatical and cruel tyranny, of preventing intolerable wrong. The Church with confident

consistency has rightly sanctioned and sanctified their heroic enterprises. While condemning wars of ambition, conquest, or revenge, she has taught that those who take arms to defend from murderous violence the weak and helpless, to maintain the priceless heritage of freedom, and to vindicate the majesty of law, may with humble assurance and firm faith pray for and expect the benediction of the Lord of Hosts. The Christian doctrine of war is admirably summarized by Burke in the words:—"The blood of man is well shed for our family, for our friends, for our God, for our country, for our kind; the rest is vanity; the rest is crime."^[46]

FOOTNOTE:

^[46] Burke. *Regicide Peace*, vi, 145.

IV. FORCE AS A MORAL INSTRUMENT

Force, in short, has a proper and necessary place in the ethical sphere. It is an indispensable instrument of the will to righteousness. The good man and the good government resolve, in the spirit of the Lord, that certain abominations shall not take place. They express their will in a law. That law remains futile, it is a mockery and a fraud, unless they are prepared to enforce it by all the means in their power, even if need be by the shedding of blood. Much, no doubt, can and will be done to secure obedience by education, by persuasion, and by appeal. Every effort will be made to prevent the evildoer, and to convert him to the good way. But the fact has to be faced that there are in the world insensate scoundrels and hardened malefactors wholly beyond the reach of education, persuasion, and appeal; men who have deliberately chosen evil to be their good, and have made a binding compact with the powers of darkness. With them force is the only possible argument. Unless it is applied, there is nothing to prevent them from dominating the earth, defying all law, and establishing the kingdom of the devil. At the back of all effective law there is, in fact, physical force. Behind the police stands the army. The magistrate would be wholly ineffective without the soldier. The criminal population would laugh

civilian restraints to scorn, if it did not know that out of sight, but never far away, are the bayonets and the guns of the ultimate defenders of the peace. The salvation of the criminal is not everything: the salvation of Society is more. Society would perish in a day if the basis of force were removed from beneath the fabric of law. One of the falsest of false generalizations is that which says that "force is no remedy." It is in many cases the only remedy. In other cases it is better than a remedy; it is a sovereign preventive of wrong. Force is the very essence of government. By its means countless evils have been suppressed in the past, such as highway-robbery, private war, duelling, piracy, slave-trading. Only through fear of it is their recrudescence obviated. If a man sees wrongs being perpetrated which he has strength to prevent—if, for instance, he sees a child being tortured, a woman being outraged, a helpless fellow-man being set upon and murdered—if he sees these things and does not intervene with all his might, then he is not a pacifist but a traitor to humanity, not a man but a contemptible or infatuated worm. Similarly if a State stands on one side inactive while small nations are wantonly stamped out of existence, while treaties are violated, while International Law is defied, while unprecedented barbarities are perpetrated, it sinks to the level of an accomplice in crime, and proves itself worthy of the perdition which awaits those who make "the great refusal."

The days of universal and enduring peace, for whose dawning we all ardently look, will not be ushered in by any diminution of the forces wielded by the powers of goodness in the world, but rather by their immense increase. Just as in our own country the King's Peace became the secure possession of every Englishman only when the King's might became irresistible, so in the larger sphere of the Society of Nations the world's peace will be firmly established only when it is maintained by the united forces of all the federated Peoples of goodwill.

V. THE IDEAL OF THE SERMON ON THE MOUNT

We, then, at the present moment are in the throes of a conflict from which we had no honourable means of escape. Not to have taken our place by the side of our Allies would have been to break our word, to violate our faith, to

betray the righteous cause. We are doing, at the cost of awful sacrifice, our high duty; we have before us the noblest of purposes; we are fighting with hands that are clean, with consciences that are clear, and with hearts that are inspired by the courage of conviction. It is our fervent hope and our faithful belief that if, in spite of our wicked lack of preparation and our subsequent incredible follies, Heaven grants us a good victory, we shall use it to further the advance of humanity towards the goal of the Kingdom of God.

What that kingdom is we are shown in that matchless mosaic of utterances attributed to Christ, known as the Sermon on the Mount. It is the kingdom of righteousness, justice, love, and peace. When, however, we study the details of the polity of that kingdom, as they are set forth in the evangelical picture, we perceive (as the Church Universal has always perceived and taught) that they are capable of realization only in a Christian society cut off from the world, or in a world become dominantly Christian. To give to all who ask, to lend indiscriminately without expecting any return, would in society as at present constituted not only speedily reduce ourselves to destitution; it would also pauperize and demoralize those into whose hands our squandered wealth should pass. To take no thought for the morrow, and to refuse to lay up treasure on earth, would under existing economic conditions simply mean that we should become useless burdens upon a thrifty and prudent community. To ignore the legal and judicial institutions of our country by neither judging nor going to law in cases where wrong has been inflicted would be to foster the perpetration of crime in a world whose very propensity towards crime has necessitated the establishment of the courts. Similarly to decline to resist evil, where evil is rampant and aggressive, would be to play the part of a traitor and to surrender the world to the devil. The precepts of the Sermon on the Mount, however liberally they may be interpreted, are, in short, the negation of civil government; that is to say, they assume the existence of a community of sanctified persons among whom civil government is unnecessary. The irreducible minimum of civil government—as even the administrative nihilists of the school of Herbert Spencer admit—involves three things, viz., defence of life, protection of property, and enforcement of contract. With these three things the precepts of the Sermon on the Mount are, as they stand, incompatible.

All this is very obvious, and the consecrated common-sense of the Church in every age has clearly perceived it. The political science of the Apostles

and the Early Fathers, and still more expressly that of their successors, recognized the authority of kings, the jurisdiction of courts, the justice of taxation, the rights of property, the majesty of human law, the protective function of soldiers, and the necessity of military service. All these were accepted as inevitable in society in its present state of imperfect development; although it was proclaimed that none of them would be required in the ideal Kingdom of God.

In the Sermon on the Mount itself, however, the truth as to the relativity of Christian institutions is obscured by the faith of the compiler that, when he wrote, the second advent of Christ was at hand, and that the Kingdom of Heaven was immediately to be established. For him there was no terrestrial future worthy of consideration; the reign of the Messiah had already begun; the consummation of all things was impending. Hence he did not feel it necessary, or indeed possible, to distinguish between the ideal of the perfect day and the practical policy of the actual moment. His citizenship already was in Heaven: to him present and future were one. The eschatological hopes of the evangelist were of course speedily dispelled, partly by mere lapse of time, partly by the growing wisdom and experience of the Church. The Church learned that its early expectation of the speedy and triumphant return of its Lord was ill-founded, and that its task was to convert the world to righteousness, not to preside over its immediate dissolution. Hence it accommodated its doctrines and its institutions to the changed outlook.

This fact causes no difficulty to those who believe in the progressiveness of revelation. Such as admit that New Testament ethics show an advance on those of the Old, will hardly contend that in politics any New Testament writer said the last word. What Tolstoy and his literalist school call the corruption and secularization of the Church was to no small degree a simple recognition of the facts that the Earth continued to exist, and that the Roman Empire and not the New Jerusalem was the dominant power therein. But though the Church as a whole was guided safely through the crisis of disillusionment, it nevertheless remains unfortunate that the compiler of the Sermon on the Mount should have made the false assumption. For the picture which he presents of the perfect man and the ideal society is so fascinating and magnificent that it is not marvellous that saints and visionaries, in a long and pathetic succession, should have repeated his error, should have ignored the distinction between present and future,

should have assumed the actual existence of the Divine Kingdom towards which, as a matter of fact, mankind has still a weary and protracted pilgrimage to make; should have proclaimed the celestial anarchy, and should as a result have been overwhelmed in tragic or ludicrous disaster.

VI. THE PACIFICIST SUCCESSION

Those who have asserted the present applicability of the full detailed programme of the Sermon on the Mount, and have endeavoured to carry it into immediate effect, have been scanty in numbers, and obscure. A few early Christian communities, soon extinct; a few hermits isolated from their fellows; a few monks in secluded cloisters; a few friars repudiated by their own orders; a few small antinomian Protestant sects springing up and vanishing with gourd-like rapidity; a few groups of Slavonic dreamers forming the innocent extreme of the Nihilist fraternity—such have been the leading professors of Gospel Anarchy. One can, even while condemning them, respect them for their purity of purpose, their lofty idealism, their sincerity, and their consistency in following their false premiss to its logical conclusion.

Much more numerous, but far less worthy of regard, are those who have picked and chosen among the precepts of the Lord, have accepted what seemed good to them and have explained away the rest. It would be easy, did space allow, to present a motley succession of fanatics and heretics from apostolic days to the present who have developed fantastic theories and have maintained them by means of passages drawn from the Sermon on the Mount.

No damned error, but some sober brow
Will bless it, and approve it with a text.

Only one group, however, now concerns us, and that is the group of anti-militarists who, for the most part arbitrarily ignoring or repudiating the other commands of their authority, fasten on those precepts that seem to inculcate the doctrine of non-resistance, and on the strength of these erect

the visionary superstructure of pacificism. They form a strange and suspicious company. Among their early representatives stand prominent the able advocate, but furious schismatic, Tertullian; the amiable scholar, but heretically Gnostic, Origen; the accomplished stylist, but bigoted and ignorant special-pleader, Lactantius. It would not be a harsh judgment to say that most of the early pacificists had some twist of mind or character that disturbed the perfect balance of their sanity.

The later sects who have included pacificism in fleeting religious systems of varying degrees of impossibility and absurdity are still more open to suspicion on mental and moral grounds. The Cathari, the Waldenses, the Anabaptists, and the "Family of Love," not only developed monstrous doctrines: they also boasted of an antinomian freedom from legal restraint which led some of their devotees into such wild excesses of conduct as made their destruction inevitable. The Franciscan Tertiaries, who never wholly abjured war, became involved in the conflict between the Empire and the Papacy, and departed from their ideal. The more recent Nazarenes in Hungary and Doukhobors in Russia and Canada have shown themselves, by their refusal to recognize and obey any form of government, a hopeless nuisance to any community that is unfortunate enough to be afflicted by their presence. It surely must give the present-day pacificists pause, if anything can do so, to find themselves mixed up with such a throng. If men are to be judged by their company, they can hardly hope to escape certification.

It is true that the Society of Friends has a more respectable history. But the Society of Friends has for the most part consisted of sensible persons who have accepted the common Christian interpretation of the Sermon on the Mount, and so have been pacificists of an unusually moderate type—by no means unconditional non-resisters. Just as they do not give indiscriminately, or lend (especially such of them as are prosperous bankers) expecting no return, or refrain from judging, or going to law, or laying up treasure on earth, or taking thought for the morrow, so they do not interpret literally the command "resist not evil." They accept the constitution of the country, the government of which is based on force; they pay taxes for the maintenance of the army and the navy, and admit their necessity; they support the police, and call it in if their persons or property are threatened; many of them, to their infinite credit, actually join the fighting forces when they feel that

great moral issues are at stake. George Fox himself, the founder of the Society, was an extremely belligerent and even truculent individual. He supported the militant Cromwellian regime, and it was only after the collapse of the Puritan Commonwealth, which was based on the force of the New Model army, that he abjured all weapons of offence, except his tongue. Isaac Pennington, his contemporary and friend, was actually a chaplain in the New Model (which contained many Quakers), and to the very end he was engaged in stirring it up to repeat its early exploits against "Babylon." His writings contain the passage: "I speak not against any magistrates or peoples defending themselves against foreign invasions, or making use of the sword to suppress the violent and evil-doers within their borders; for this the present state of things may and doth require."^[47] A sounder and saner statement of good Christian teaching on the matter of police and military service one could not desire. With this admission in one's mind, one can view with unqualified admiration the efforts of the Friends to eliminate war, and to perfect the methods of peace in the intercourse of men. More than most Christian people have they laboured effectively to hasten the advent of the Kingdom of God. It is true that their attempts in Pennsylvania and elsewhere to establish a pacifist regime have failed—it was inevitable that they should fail—but this does not in any way lessen the debt which the world owes to them for their powerful and far-reaching influence in favour of love and gentleness and peace.

FOOTNOTE:

^[47] I quote from J. W. Graham, *War from a Quaker Point of View*, p. 71. See also my review of this book in *Hibbert Journal*, No. 55.

VII. CONCLUSION

The sum of the matter seems to be this. Government is necessary in this present evil world. Only by means of sovereign political authority, based upon physical as well as moral force, can there be effective "punishment of wickedness and vice" or "maintenance of true religion and virtue." This is

clearly recognized in the Bible, which proclaims that "the powers that be are ordained of God," which enjoins obedience to kings and governors as a religious duty, and which sees in the sword of justice carried by the secular ruler a weapon directed against the same enemies as oppose the establishment of the Kingdom of God. It is essential for the well-being and even for the existence of society, that crime should be suppressed. Hence, in addition to moralists and ministers who seek to educate and convert, there must be police and soldiers—in short, the full organized force of the community—ready to stamp out incorrigible villainy, if need be with blood and iron. Similarly, it is essential for the well-being and even for the existence of the polity of peoples—the growing society of nations—that aggression should be prevented, that treacherous intrigues should be frustrated, that treaty engagements should be enforced, that the reign of law should be confirmed. But, in order to realize this end, there is need not only of pacific missions and cosmopolitan congresses, but also of an armed might sufficient to prevent or to punish with irresistible certainty breaches of international conventions and violations of the World's peace. Hence, whether we have regard to internal good government, or the maintenance of international justice, the need of military force is imperative. Not only does there exist what the Russians quaintly call a "Christ-serving and worthy militancy," there are occasions, of which the present is one, when military service becomes the highest form of Christian duty. To hold aloof is not to display a superior form of Christianity; it is to be an apostate. As Solovyof has impressively shown in his notable conversations on *War and Christianity*, pacificism under present conditions is that very sort of religious imposture with which is associated the abominable name of Antichrist.

VI

THE STATE AND ITS RIVALS

I. THE IDEA OF THE STATE IN ENGLAND

Most of our recent political troubles are attributable to what Fortescue in the fifteenth century called "lack of governance." We are all of us painfully aware of the fact; but we are not all of us equally conscious that the feebleness and inefficiency of our supreme administration are to no small extent due to the absence among our people as a whole of any adequate idea of the position and function of the State. For if it is true generally that every nation has the sort of government that it deserves, it is specially true of a nation with democratic institutions. Weaknesses of intellect, infirmities of will, and faults of character in the sovereign representative assembly are but reproductions on a magnified scale of the same defects in the electorate. It is the failure of our people as a whole to realize the idea of the State that has resulted in the filling of the House of Commons with men who stand, not for the Nation in its unity and the Empire in its integrity, but for all sorts of limited and conflicting sectional interests—parties, leagues, fellowships, unions, cliques, schools, churches, orders, classes, trusts, syndicates, and so on. No wonder that in times of national and imperial crisis such representatives prove totally unequal to the duty of strong, corporate, and patriotic administration.

The weakness of the idea of the State among the peoples of the British Isles is explicable on geographical and historical grounds. For the idea of the State—that is to say, the idea of society politically organized as an indivisible unit under a sovereign government—although it has other and deeper sources of vitality, is specially fostered by a sense of national danger, but tends to languish when complete immunity from external peril can be postulated. Never has the realization of "the commonwealth of this realm of England" been so strong as it was in the days when Spanish invasion threatened. The splendid patriotism of that great age is portrayed for all time in the immortal glory of Shakespeare's historical plays. Not far short, however, rose the patriotic realization of national unity during the crisis of the Napoleonic struggle. Wordsworth's magnificent *Sonnets*

dedicated to Liberty remain as the enduring memorial of the heights which British State-consciousness then attained:

In our halls is hung
Armoury of the invincible knights of old:
We must be free or die, who speak the tongue
That Shakespeare spoke; the faith and morals hold
Which Milton held. In everything we are sprung
Of Earth's first blood, have titles manifold.

But, except at rare intervals, Britain's insular position has given her people so soothing a sense of security that they have allowed the conception of the commonwealth to droop, and have tended to regard the State as, under normal conditions, a nuisance which should as far as possible be abated, as an intruder into the sphere of private enterprise which should be extruded, as an enemy to liberty which should be suppressed. It may readily be admitted that in days before the State had been democratized this hostile attitude was not without justification. In the early seventeenth century, for instance, the State meant the Stuart monarch—*L'État c'est Moi*—and the interests of the Stuart monarch were by no means those of any of the nations that he governed. In the early eighteenth century the State meant the Whig oligarchy, and its members only too easily came to regard the welfare of the Empire as identical with their own prosperity. In the early nineteenth century the State meant the landed and moneyed magnates of the Tory aristocracy, and they had an extremely inadequate apprehension of the needs and aspirations of the rapidly increasing millions over whom they exercised authority. Hence one can understand that opposition to the policy of Stuart king, or Whig nobility, or Tory plutocracy, readily took the form of antagonism to the State as such. Thus the political theory of Milton and the Puritans not only justified resistance to Charles I, it also proclaimed a doctrine of the natural rights of the individual fatal to all types of government. Similarly the political theory of Adam Smith and the *laissez-faire* economists, together with that of their contemporaries, Bentham and the utilitarian philosophers, not only attacked the restrictive regulations of the Whig oligarchy, but showed on general principles the strongest dislike of what it called "State interference" in all circumstances. So, too, Herbert Spencer and the nineteenth century school of scientific individualists not

only demonstrated (as they did with extraordinary pungency and success) the extreme folly and incompetence of the main government departments of their own day; they also sought to establish the eternal and inevitable antagonism of Man versus the State, and to limit universally the functions of government to the irreducible minimum.

This attitude of hostility, however, ceased to have its old justification with the advent of democracy. The Reform Acts of 1832, 1867, and 1884 have so enlarged the electorate as to convert government into something approaching self-government, and the State has become the organized form of democracy itself. Hence the individualism of Milton, Adam Smith, Bentham, and Spencer is an anachronism. It is not remarkable, then, that, following Parliamentary Reform, the idea of the State revived in Britain with new force and in a new form—no longer stimulated by the pressure of extreme peril, but excited by the new possibilities of corporate democratic activity. The young lions of the Fabian Society in their optimistic infancy were filled with the idea of the State, and advocated State action in wide spheres of industrial organization, municipal enterprise, and social reform. The Imperial Federation League gloried anew in the name of Britain, and strove to bring the four quarters of the earth within the circle of a self-conscious Empire. Later on, the Tariff Reform League demanded State-control and regulation of our world-wide commerce.

But the revival of the idea of the State, under the stimulus of Socialists, Imperialists, Protectionists, and others, was short lived. All these enthusiasts became disappointed and disgusted with democracy and with the State which it controls. Democracy did not move fast enough for them, nor always in the direction that they desired. Hence—and most markedly since the dawn of the twentieth century—a reaction against the State has set in. There has been, as we have already seen, an epidemic of passive resistance. Individualists of all sorts, together with Trade Unionists, Syndicalists, Clericals, Suffragists, No-Conscriptionists, Ulstermen, Nationalists, and other bodies, giving up the attempt to convert democracy and to secure their ends through the sovereign agency of the democratic State, are taking direct action, are proclaiming rival authorities to the State, and are threatening the very existence of the body politic. The outlook is ominous, and it needs to be steadily faced. The present moment, moreover, is peculiarly favourable for its consideration. For the sudden and unexpected return of extreme

national danger has once again quickened in our midst the idea of the State, has revived the spirit of patriotism, has restored the national unity, and has reenforced the principle of civic service. We can see under the revealing searchlight of the war the anarchy towards which we have been drifting during the past ten or more years.

II. THE RIVALS OF THE STATE

The first rival of the State that calls for consideration is the Individual. His rights as against the government are still loudly proclaimed. "The chief message of 1915," says one of our leading individualists, Rev. Dr. Clifford, in a New Year's oration to his flock,^[48] "is a clarion call to guard our personal and democratic liberties against the attacks of State absolutism." The idea of guarding "democratic liberties" against democracy itself is, of course, mere nonsense—one of those point-blank contradictions in terms which, though full of sound and fury, signify nothing. It is, however, unfortunately, typical of much of the loose thinking and vague talking indulged in by the leaders of those pestilent anti-patriotic unions and fellowships which infest and harass the country at the present moment. The idea of guarding "personal liberties" against democracy is not so palpably absurd; it does not involve a contradiction in terms. Moreover, it appears to have some relation to the admitted fact that the rule of a democracy may press very heavily upon some or all of its constituent members. Nevertheless, it is equally fallacious. It rests upon a false antithesis between the individual and the community to which he belongs. No such antithesis exists. "The individual," rightly says Mr. W. S. McKechnie, "apart from all relations to the community is a negation."^[49] In similar strain, Mr. E. Barker contends that "a full and just conception of the individual abolishes the supposed opposition between the Man and the State."^[50] Long ago Hegel exclaimed: "Our life is hid with our fellows in the common life of our people," and his true and fruitful conception forms the basis of the political philosophy of T. H. Green, F. H. Bradley, and Bernard Bosanquet. It is, also, the foundation of all that is good and enduring in present-day

Socialism. The individual apart from society is a mere abstraction, like the "economic man" of the old economists.

What, then, are these so-called "personal liberties" which the individual is supposed to possess in virtue of his humanity and independently of any authority external to himself? If it is said that they are freedom of thought, freedom of emotion, and freedom of will, the criticism is that these are not "liberties" at all, but merely movements of the mind which no power whatsoever external to the individual can possibly control, and with which no political authority in the country would ever dream of attempting to interfere. If, however, it is said that they include further such things as freedom of speech, freedom of writing, freedom of public meeting, freedom to act generally as conscience dictates, the criticism is that such liberties as these are not "personal" merely, or even primarily: they are liberties that profoundly affect the community. Regarded from the communal point of view, in fact, they are not "personal liberties" at all, if by that term is meant individual rights. They are rights derived from the community; they are concessions to be granted or withheld according to the requirements of public policy; they are matters of regulation by the common will. Society does not, and cannot, recognize the existence, independent of its own consent, of any such so-called "personal liberties." It does not, and cannot, admit the possession by individuals of any rights, inherent and indefeasible, to do as they like in matters that concern the interests of the community generally. Still less can the State be expected to protect individuals in the exercise of activities which it regards as detrimental, or in the neglect of duties which it regards as essential, to the general well-being. It cannot restrain anyone's conscience; but it must control everyone's conduct. All this, of course, is the commonplace of political theory, and it is curious that at this late day one should have to repeat Burke's destructive criticism of metaphysic liberties, or Bentham's damning exposure of the "anarchic fallacy" of the Rights of Man, or Mr. D. L. Ritchie's quite recent dissipation of the errors underlying the idea of Natural Rights. But it is still more curious that many of the men who revive against the modern democratic State this long-laid ghost of eighteenth-century individualism call themselves Socialists, and invoke the State (when it suits them to do so) to embark on all manner of anti-individualistic enterprises. This anomaly, however, is merely one among many flagrant instances of that ignorance of

precedent which revives long-buried heresies, that incapacity for thought which seems unaware of inconsistencies, or that shameless perversity which seeks out and proclaims any sort of general principle which happens to suit the exigencies of the moment.

A second rival to the State is Political Party. At the present juncture there are four important political parties in existence in the British Isles, viz., Liberal, Conservative, Nationalist, Labour, beside various incipient ones. The two old parties, Liberal and Conservative, stand for more or less clearly defined and sharply opposed general principles. Hallam has described them as the party of progress and the party of order respectively; and he (followed by Macaulay and other writers) has devoted a good deal of care to the elucidation of the fundamental differences between them. These old parties are by far the most vital and powerful political entities in the United Kingdom. They have deep-rooted traditions, efficient organizations, large funds secretly raised and administered, formulated programmes, and all the paraphernalia of habitations, catchwords, and badges calculated to excite loyalty and stimulate zeal. They secure in alternation the control of the State, and administer in the name of the nation as a whole the vast affairs of the British Empire. It may be at once admitted that parties such as these are inevitable in any system of representative government. For so long as fundamental differences of opinion exist among electors, it is only by means of organizations based on the primary opposing principles that any working constitution can be framed. To attack party-government as such is vain and even absurd. Nevertheless, party has become the rival of the State; and its rivalry is all the more dangerous and insidious because it always professes to act in the interests of the State and on behalf of the nation as a whole. Its professions, however, have become false and hypocritical. In the name of the People it seeks its own gain. It has ceased to be a means to good democratic government, and has grown to be an end in itself. In its rivalry to other parties, in its struggle for power, in its scramble for the spoils of office, in its eagerness to secure votes, it has debased political ideals, it has corrupted citizenship, it has abandoned truth, it has proclaimed smooth lies, it has betrayed the State, it has almost destroyed the nation. Happy indeed will it be if this war, which is revealing to us the hideousness and deadliness of the party-spirit, enables us to reduce the old parties to their proper place of subordination to the State.

In addition to the two old parties, however, there are two comparatively new ones which occupy places of importance in the world of politics. These are the Nationalist and the Labour parties. Neither of these professes to make the interests of the State its prime concern. The one concentrates its energies upon a struggle to advance the cause of a single nation from among the four that constitute the United Kingdom; the other devotes itself to the affairs of a single social class. The existence of these powerful sectional organizations is a disastrous portent. They stand, not as the old parties do for divergent views concerning the interests of the State as a whole, but for mortal schism in the body politic. Never can there be a full return to healthy national life until means have been found for reabsorbing these and other incipient schismatic organizations into the unity of the Great Society.

A third rival to the State has recently come into prominence in the shape of a number of various non-political corporations which claim to possess an organic existence independent of, and co-ordinate with, the State, and thus deny the right of the State to intrude within the spheres of their operations. The most important are the Syndicalists, who proclaim the autonomy of the industrial union or guild, and the Ecclesiastics, who assert the autonomy of the denationalized church. Both agree in repudiating political control, and in abjuring the use of political instruments. They rely upon "direct action" of their own, the one employing the terrors of the general strike to overawe the community, the other the horrors of hell. Now it may be freely granted that one of the most notable advances in modern political theory has been the recognition of the fact that men naturally organize themselves into groups—families, clans, tribes; sects, societies, churches; guilds, trade unions, clubs, and so on—and that the State is rather a federation of groups than an association of isolated individuals. It may be granted, secondly, that some of these organizations are anterior to the State in point of time, and that they deal with matters that are not appropriate for direct State control. Finally, it may be granted that the State will be well advised to leave some or all of them in possession of large powers of self-administration. Nevertheless, when once the Great Society has come into existence, and has organized itself as the National State, they must, if anarchy is to be avoided, all take their places as constituent members of the community, and recognize that they exercise such autonomous powers as they possess in

virtue of the permission of the general will. The State, however prudently it may employ its powers, must be, and must be universally admitted to be, in all causes, civil or ecclesiastical, throughout all its dominions, in the last resort, supreme. In the interests of the common good it cannot tolerate any rivals.

FOOTNOTES:

[48] Reported in *Daily Chronicle*, January 4th, 1916.

[49] McKechnie. *The State and the Individual*, p. 3.

[50] Barker. *Political Thought from Spencer to the Present-Day*, p. 108.

III. WHAT THE STATE IS AND DOES

In the purification and exaltation of the Democratic National State rests the one hope of the salvation of Britain and the Empire. In a federation of Democratic National States resides the best prospect of the future peaceful and well-ordered government of the world. The individualism of Dr. Clifford leads straight to anarchy; the unchecked development of the party-system means the corrupt tyranny of the caucus; the triumph of Syndicalism would involve the tragedy of class war; the dream of the reunion of humanity in the bosom of a cosmopolitan church is a vain revival of a mediæval illusion. The individual must be brought to recognize that politically he has no separate existence, and must learn to limit his operations to his proper share in the constitution and determination of the general will; party must be remorselessly reduced to its legitimate subordination to the interests of the community as a whole; syndicates and trade unions must be prevented from cutting themselves loose from the body of the nation, must be compelled to recognize the supremacy of the law of the land, and must be deprived of any inequitable privileges which they may have secured; ecclesiastics of all orders must be persuaded to rest content with such autonomy as the general will may grant them, and must strive to become, not a separate corporation, but the indwelling and directing conscience of the people. The State must be supreme.

What is the State which is thus exalted above all rivals? Let Mr. Bernard Bosanquet answer. "The State," he says, "is not merely the political fabric. The term 'State' accents indeed the political aspect of the whole, and is

opposed to the notion of an anarchic society. But it includes the entire hierarchy of institutions by which life is determined, from the family to the trade, and from the trade to the church and the university. It includes all of them, not as the mere collection of the growths of the country, but as the structures which give life and meaning to the political whole, while receiving from it mutual adjustment, and therefore expansion and a more liberal air."^[51] In a similar strain T. H. Green says: "The State is for its members, the society of societies, the society in which all their claims upon each other are mutually adjusted."^[52] The keynote of both of these profound utterances is "adjustment." They recognize the fact that the convictions and opinions of individuals differ, that the purposes of parties conflict, that the interests of racial units and social classes diverge from one another, that the demands of churches are mutually irreconcilable. They recognize further that unless individuals, parties, races, classes, churches agree in acknowledging the adjusting authority of the general will of the community to which all belong, endless struggle and hopeless chaos must supervene. No pretension is made that the State is of supernatural origin; no claim to divine right is advanced. It is admitted that the State at one time did not exist. It is foreseen that a day may come when it will be merged in a still larger community. But for the present it is the only possible organ by means of which the common will can operate in the interests of the common good. The basis of its claim for obedience rests upon the facts, first, that every individual subject, and every organized group of subjects, owes to the State, and to it alone, the conditions that make existence possible, and secondly, that only as a member of the State can the individual attain to his full development, and only under the protection of the State can the group achieve its purposes. The attainment of the common good, as that good is conceived of by the common intelligence, and by means which the common will determines—such is the ideal of the Democratic National State. Here surely is a sphere in which every man can find the fullness of life.

FOOTNOTES:

^[51] Bosanquet. *Philosophical Theory of the State*, p. 150.

^[52] Green. *Principles of Political Obligation*, p. 146.

IV. THE SPHERE OF NATIONAL SERVICE

The above statement of the ideal of the Democratic National State brings home to the mind a realization of the magnitude of the sphere which lies open to National Service in the broad sense of the term. Democracy is sovereign; although it is flouted by individuals, deluded and debauched by parties, and challenged by separatist syndicates. It must remain sovereign, and its sovereignty must be made a more real, more conscious, and more effective thing than it has ever been before. Rarely, however, has there been a sovereign less adequately equipped than democracy for its gigantic responsibilities. One of its most enthusiastic modern supporters, Professor John MacCunn, gravely admits that "Democracy, still raw to its work, whether in politics or industry, may blunder—may blunder fatally."^[53] Long ago it was pointed out by Plato that democracy is the cult of incompetence. In more recent times Mill has emphasized the possibility that democracy may govern badly and oppressively; Maine has warned us that the dominance of the commonalty may end in the triumph of the mediocre, and a more than Chinese stagnation; Carlyle has denounced democracy as powerful for destruction, but impotent for building up, as helpless in the face of great emergencies, as incapable of choosing good leaders; Lecky has demonstrated the danger of the corruption of the democracy by evil politicians; Belloc has shown how it tends to develop, and then become a slave to, a bureaucracy; Graham Wallas has portrayed the psychological peril of its hypnotization by colours and claptrap. All the dangers thus enumerated are real and formidable. They have, however, to be faced and overcome by men of goodwill: for there is now no alternative to democracy but anarchy. Fortunately they may be faced in confidence and hope. For the British democracy—as the revealing crisis of this great war has shown—is sound at heart, is eager to be delivered from its betrayers, and is longing to learn. It calls pathetically for those who know to teach it, and for those who can to lead it. Here, then, is the sphere of National Service. Who will not come forward to help democracy to become conscious of its power and its dignity; to aid it in establishing its authority over all rebels and rivals; to teach it how to use its omnipotence gently, so as to leave to those beneath its sway the largest possible room for freedom consistent with the common

good; to make it aware of its responsibilities for its vast dominions across the seas and their teeming populations; to awaken it to a realization of the extent to which the whole future of the human race rests upon the success of its experiment in government? It is in the service of such a sovereign as this, and in the pursuit of such an ideal, that faithful souls attain that self-realization which is perfect freedom.

FOOTNOTE:

[\[53\]](#) MacCunn. *Six Radical Thinkers*, p. 69.

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